

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X

LESIA WYATT,

Plaintiff,

-against-

THE CITY OF NEW YORK, SGT. ALEXANDER
CEDILLO, Shield No. 2010, Individually and in his Official
Capacity, P.O. MICHAEL DESETTO, Tax No. 951183,
Individually and in his Official Capacity, and POLICE
OFFICERS "JOHN DOE" #1-10, Individually and in their
Official Capacity (the name John Doe being fictitious, as the
true names are presently unknown),

Defendants.

-----X

SUMMONS

Jury Trial Demanded

Plaintiff designates
Queens County as the
place of trial.
The basis of venue is:
CPLR § 504(3)

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
July 24, 2015

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

SGT. ALEXANDER CEDILLO, Shield No. 2010
103rd Precinct
16802 91st Ave.
Jamaica, NY 11432

P.O. MICHAEL DESETTO, Tax No. 951183
103rd Precinct
16802 91st Ave.
Jamaica, NY 11432

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X

LESIA WYATT,

Plaintiff,

-against-

THE CITY OF NEW YORK, SGT. ALEXANDER
CEDILLO, Shield No. 2010, Individually and in his
Official Capacity, P.O. MICHAEL DESETTO, Tax No.
951183, Individually and in his Official Capacity, and
POLICE OFFICERS "JOHN DOE" #1-10, Individually
and in their Official Capacity (the name John Doe being
fictitious, as the true names are presently unknown),

Defendants.

-----X

Plaintiff LESIA WYATT, by her attorneys, COHEN & FITCH LLP, complaining of the
defendants, respectfully alleges as follows:

FACTS

1. Plaintiff LESIA WYATT is an African American female and has been at all relevant times a resident of Queens County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants, SGT. ALEXANDER CEDILLO, P.O. MICHAEL DESETTO, and POLICE OFFICERS “JOHN DOE” #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The November 25, 2013 Incident

8. On or about November 25, 2013, at approximately 8:00 p.m. in the County of Queens, City, and State of New York, plaintiff LESIA WYATT was in the vicinity of 150th St. and South Rd., Queens, NY.

9. At the aforesaid time and place, NYPD officers accosted plaintiff, searched her, and then immediately placed her under arrest with her arms handcuffed tightly behind her back.

10. At no time on November 25, 2013, did defendants possess probable cause to arrest plaintiff.

11. At no time on November 25, 2013, did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

12. Thereafter, plaintiff was transported to a nearby police precinct where she was subjected to a search, placed in a holding cell, and charged with Loitering for the Purpose of Engaging in Prostitution.

13. At no time on November 25, 2013, did plaintiff loiter for the purpose of engaging in prostitution, commit any crimes or offenses, or behave unlawfully in any way.

14. Thereafter, defendants transported plaintiff to Central Booking where she was held for several hours until her criminal court arraignment.

15. Upon information and belief, at plaintiff's criminal court arraignment, approximately \$2,500 bail was set.

16. Plaintiff remained in custody for approximately three (3) days before she was released after her next court appearance.

17. In connection with plaintiff's arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the Queens County District Attorney's Office. Specifically, defendants falsely stated that plaintiff stopped several motor vehicles with lone male drivers and engaged said drivers in conversation, causing the flow of vehicular traffic to be obstructed. Thereafter, defendants repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest.

18. As a result of her unlawful arrest, plaintiff LESIA WYATT spent approximately four (4) days in custody – which caused her to miss Thanksgiving dinner with her family – and made approximately two (2) court appearances before all charges against her were adjourned in contemplation of dismissal on November 29, 2013.

19. As a result of the foregoing, plaintiff LESIA WYATT sustained, inter alia, loss of liberty, mental anguish, shock, fright, apprehension, embarrassment, humiliation, physical injury and deprivation of her constitutional rights.

The December 13, 2013 Incident

20. On or about December 13, 2013, on or between 8:20 p.m. and 8:31pm in the County of Queens, City, and State of New York, plaintiff LESIA WYATT was in the vicinity of 106-42 155th St., Queens, NY.

21. At the aforesaid time and place, NYPD officers accosted plaintiff, searched her, and then immediately placed her under arrest with her arms handcuffed tightly behind her back.

22. At no time on December 13, 2013, did defendants possess probable cause to arrest plaintiff.

23. At no time on December 13, 2013, did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

24. Thereafter, plaintiff was transported to a nearby police precinct where she was subjected to a search, placed in a holding cell, and charged with Loitering for the Purpose of Engaging in Prostitution.

25. At no time on December 13, 2013, did plaintiff loiter for the purpose of engaging in prostitution, commit any crimes or offenses, or behave unlawfully in any way.

26. Thereafter, plaintiff remained in custody for approximately three (3) hours before being released with a Desk Appearance Ticket.

27. In connection with plaintiff's arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the Queens County District Attorney's Office. Specifically, defendants falsely stated that for approximately eleven (11) minutes,

plaintiff stopped several males and engaged said pedestrians in conversation. Thereafter, defendants repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest.

28. As a result of her unlawful arrest, plaintiff LESIA WYATT spent approximately three (3) hours in custody and made approximately four (4) court appearances before all charges against her were dismissed in their entirety on June 18, 2014.

29. As a result of the foregoing, plaintiff LESIA WYATT sustained, inter alia, loss of liberty, mental anguish, shock, fright, apprehension, embarrassment, humiliation, physical injury and deprivation of her constitutional rights.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF UNDER 42 U.S.C. § 1983 ARISING FROM THE NOVEMBER 25, 2013 and DECEMBER 13, 2013 INCIDENTS DEPRIVATION OF FEDERAL RIGHTS

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

31. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

32. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

33. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

34. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

35. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF UNDER 42 U.S.C. § 1983 ARISING FROM THE
NOVEMBER 25, 2013 and DECEMBER 13, 2013 INCIDENTS
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL**

36. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

37. Defendants created false evidence against plaintiff.

38. Defendants forwarded false evidence and false information to prosecutors in the Queens County District Attorney's office.

39. Defendants misled the prosecutors by creating false evidence against plaintiff and thereafter providing false testimony throughout the criminal proceedings.

40. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

41. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear for her safety, and she was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**THIRD CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983 ARISING FROM
THE DECEMBER 13, 2013 INCIDENT
MALICIOUS PROSECUTION**

42. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

43. Defendants misrepresented and falsified evidence before the Queens County District Attorney.

44. Defendants did not make a complete and full statement of facts to the District Attorney.

45. Defendants withheld exculpatory evidence from the District Attorney.

46. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff LESIA WYATT.

47. Defendants lacked probable cause to initiate criminal proceedings against plaintiff LESIA WYATT.

48. Defendants acted with malice in initiating criminal proceedings against plaintiff LESIA WYATT.

49. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff LESIA WYATT.

50. Defendants lacked probable cause to continue criminal proceedings against plaintiff LESIA WYATT.

51. Defendants acted with malice in continuing criminal proceedings against plaintiff LESIA WYATT.

52. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

53. Specifically, defendants falsely alleged that for approximately eleven (11) minutes, plaintiff stopped several males and engaged said pedestrians in conversation.

54. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in plaintiff's favor on or about June 18, 2014.

55. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear for her safety, and she was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**FOURTH CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983 ARISING FROM
THE NOVEMBER 25, 2013 and DECEMBER 13, 2013 INCIDENTS
FALSE ARREST**

56. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

57. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

58. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear for her safety, and she was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**FIFTH CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983 ARISING
FROM THE NOVEMBER 25, 2013 and DECEMBER 13, 2013 INCIDENTS
UNLAWFUL SEARCH AND SEIZURE**

59. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

60. As a result of the aforesaid conduct by defendants, plaintiff's person and possessions were illegally and improperly seized and searched without consent, a valid warrant,

probable cause, privilege or consent, in violation of her constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

**SIXTH CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983 ARISING FROM THE
NOVEMBER 25, 2013 and DECEMBER 13, 2013 INCIDENTS
MUNICIPAL LIABILITY**

61. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

62. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

63. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and

64. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff.

65. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

66. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

67. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

68. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

69. The acts complained of deprived the plaintiff of her right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
July 24, 2015

BY: _____/S_____
GERALD COHEN

JOSHUA FITCH
ILYSSA FUCHS
COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10273
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for plaintiff LESIA WYATT in the within entitled action

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, he believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
 July 24, 2015

_____/S_____
Ilyssa Fuchs